



U.S. Customs and Border Protection

PUBLIC VERSION

April 8, 2026

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LXQ Trading Inc.

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Nanjing Fengjiao Import & Export

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Shenzhen Wushida Industry Co., Ltd.

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SSG Group Imports Co.

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Super Blooming Star Inc.

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Benjamin H. Shanbaum

On behalf of **Agri-Fab, Inc.**

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Re: EAPA Consolidated Case 8150 – Notice of Determination as to Evasion

To the Counsel and Representatives of the above-referenced Entities:

Pursuant to an examination of the record in Enforce and Protect Act (EAPA) Consolidated Investigation 8150, U.S. Customs and Border Protection (CBP) has determined there is substantial evidence that Amin World Inc. (Amin World), Jiangshan Zhiyuan Import & Export (Jiangshan Zhiyuan), LXQ Trading Inc. (LXQ Trading), Nanjing Fengjiao Import & Export

(Nanjing Fengjiao), New Wayn Inc. (New Wayn), Shaoxing Youcheng Import and Export (Shaoxing Youcheng), Shenzhen Wushida Industry Co., Ltd. (Shenzhen Wushida), SSG Group Imports Co. (SSG Group), and Super Blooming Star Inc. (Super Blooming Star) (collectively, the IORs) evaded antidumping duty (AD) order A-570-939 on tow-behind lawn groomers (TBLGs or lawn groomers) from the People's Republic of China (China).¹ CBP determined there is substantial evidence that the IORs entered covered merchandise into the customs territory of the United States through evasion by failing to declare the merchandise as subject to the *AD Order*, undervaluation, and misclassification. As a result, no cash deposits were applied to the merchandise at the time of entry. The basis for CBP's determination is explained below.

I. Background

Allegations and Initiation

On April 25, 2025 and May 15, 2025, Agri-Fab, Inc. (Agri-Fab) filed EAPA allegations.² The Trade Remedy Law Enforcement Directorate (TRLED) within CBP's Office of Trade acknowledged receipt of the properly filed allegations on May 14, 2025, and May 21, 2025.³

On June 5, 2025, based on the April 25 Allegation, TRLED initiated EAPA investigations against IORs Amin World and Super Blooming Star.⁴ In addition, TRLED initiated EAPA investigations against New Wayn, an IOR acting on behalf of OSOUGVO, Inc. (OSOUGVO) and Jiangshan Zhiyuan, Nanjing Fengjiao, Shaoxing Youcheng, and Shenzhen Wushida, IORs acting on behalf of UDWUEN, Inc. (UDWUEN).⁵ On June 12, 2025, based on the May 15 Allegation, TRLED initiated EAPA investigations against SSG Group and LXQ Trading, IORs acting on behalf of IUCDRG, Inc. (IUCDRG).⁶ In the allegations, Agri-Fab named OSOUGVO, UDWUEN, and IUCDRG as entities importing shipments with merchandise descriptions that include Chinese-origin lawn groomers.⁷ CBP data showed that OSOUGVO was a consignee for shipments entered into the United States where New Wayn was named as an IOR, UDWUEN was a consignee for shipments entered into the United States where Jiangshan Zhiyuan, Nanjing Fengjiao, Shaoxing Youcheng, and Shenzhen Wushida were named as IORs, and IUCDRG was a consignee for shipments entered into the United States where SSG Group and LXQ Trading

¹ See *Certain Tow Behind Lawn Groomers and Certain Parts Thereof from the People's Republic of China: Antidumping Duty Order*, 74 Fed. Reg. 38,395 (Dep't Commerce, August 3, 2009) (*AD Order*).

² See Letters from Agri-Fab, Inc., "Agri-Fab, Inc.; EAPA Allegation" (April 25, 2025) (April 25 Allegation) and "Agri-Fab, Inc.; EAPA Allegation" (May 15, 2025) (May 15 Allegation).

³ See CBP Emails, "EAPA 8151 - Receipt of Allegation" (May 14, 2025); "EAPA 8152 - Receipt of Allegation" (May 14, 2025); "EAPA 8153 - Receipt of Allegation" (May 14, 2025); "EAPA 8154 - Receipt of Allegation" (May 14, 2025); and "EAPA 8150 - Receipt of Allegation" (May 21, 2025).

⁴ See CBP Memoranda, "Initiation of Investigation for EAPA Case Number 8151" (June 5, 2025) (EAPA 8151 Initiation Memorandum) and "Initiation of Investigation for EAPA Case Number 8152" (June 5, 2025) (EAPA 8152 Initiation Memorandum), respectively.

⁵ See CBP Memoranda, "Initiation of Investigation for EAPA Case Number 8153" (June 5, 2025) (EAPA 8153 Initiation Memorandum) and "Initiation of Investigation for EAPA Case Numbers 8154, 8194, 8195 and 8196" (June 5, 2025) (EAPA 8154, 8194, 8195 and 8196 Initiation Memorandum), respectively.

⁶ See CBP Memorandum, "Initiation of Investigation for EAPA Case Numbers 8150 and 8197" (June 12, 2025) (EAPA 8150 and 8197 Initiation Memorandum). CBP erroneously indicated that SSG Group's full name was "SSG Imports Co." rather than "SSG Group Imports Co." in this memorandum.

⁷ See April 25 Allegation at 5 and May 15 Allegation at 5.

were named as IORs.⁸ The statute defines an allegation as “an allegation that a person has entered covered merchandise into the customs territory of the United States through evasion” and does not require that an allegation specify an importer of record.⁹ In addition, pursuant to 19 C.F.R. § 101.1, an “importer” may be the consignee, the importer of record, the actual owner of the merchandise, or the transferee of the merchandise. Because 19 U.S.C. § 1517(c)(1)(A) simply calls on CBP to make a determination “with respect to whether such covered merchandise was entered into the customs territory of the United States through evasion” and because the allegations reasonably suggested an evasion scheme, TRLED initiated investigations against IORs New Wayn, Jiangshan Zhiyuan, Nanjing Fengjiao, Shaoxing Youcheng, Shenzhen Wushida, SSG Group, and LXQ Trading in accordance with 19 C.F.R. § 165.15.

In the allegations, Agri-Fab claimed that Amin World, Super Blooming Star, OSOUGVO, UDWUEN, and IUCDRG are evading the *AD Order* by failing to declare and pay AD duties on imports of covered merchandise into the customs territory of the United States.¹⁰ Agri-Fab argued these entities are carrying out an evasion scheme by incorrectly describing the merchandise on shipping documentation (*i.e.*, describing the product as something other than TBLGs), misclassifying the merchandise, and/or other means.¹¹

Agri-Fab stated that lawn groomers with the “VEVOR” brand name are being imported into the United States from China for sale to retail customers in the United States through VEVOR’s website (<https://www.vevor.com>) and online marketplaces.¹² According to Agri-Fab, “VEVOR” is a brand and a company focused on entry-level home improvement products, including products that fit within the description of the four categories of TBLGs covered by the *AD Order*.¹³ Based on screenshots from VEVOR’s website taken in November 2024 of tow-behind sweepers, tow-behind dethatchers, and tow-behind combination drop spreader/spike aerator units, Agri-Fab claimed that lawn groomers are being actively marketed and sold in the United States.¹⁴ Agri-Fab asserted that Amazon.com lists VEVOR-branded TBLGs as having a country of origin of China and that it has not found any publicly available information indicating these products have been produced anywhere other than China.¹⁵

⁸ See Post-Receipt Data Report for EAPA Case Number 8153 (June 2, 2025) (CBP Post-Receipt Data for New Wayn); Post-Receipt Data Report for EAPA Case Number 8154 (June 2, 2025) (CBP Post-Receipt Data for Jiangshan Zhiyuan); Post-Receipt Data Report for EAPA Case Number 8194 (June 2, 2025) (CBP Post-Receipt Data for Nanjing Fengjiao); Post-Receipt Data Report for EAPA Case Number 8195 (June 2, 2025) (CBP Post-Receipt Data for Shaoxing Youcheng); Post-Receipt Data Report for EAPA Case Number 8196 (June 2, 2025) (CBP Post-Receipt Data for Shenzhen Wushida); Post-Receipt Data Report for EAPA Case Number 8150 (May 30, 2025) (CBP Post-Receipt Data for SSG Group); and Post-Receipt Data Report for EAPA Case Number 8197 (May 30, 2025) (CBP Post-Receipt Data for LXQ Trading).

⁹ See 19 U.S.C. § 1517(b)(2).

¹⁰ See April 25 Allegation at 11 and 20, and May 15 Allegation at 11 and 21.

¹¹ See April 25 Allegation at 11 and 21, and May 15 Allegation at 11 and 21.

¹² See April 25 Allegation at 4 and 7, and May 15 Allegation at 4 and 7.

¹³ See April 25 Allegation at 13, and May 15 Allegation at 13.

¹⁴ See April 25 Allegation at 7-8 and Attachments A-1 through A-8, and May 15 Allegation at 7-8 and Attachments A-1 through A-8.

¹⁵ See April 25 Allegation at 13-14 and Attachments E-1 through E-7, and May 15 Allegation at 13-15 and Attachments E-1 through E-7.

Agri-Fab stated that in addition to being sold on VEVOR’s website and Amazon.com, VEVOR-branded products are sold on Chinese-run online marketplaces available to U.S. customers, including Temu.com and AliExpress.com.¹⁶ Agri-Fab asserted that while it focused on VEVOR-branded TBLGs in its allegations, it also identified TBLGs for sale under other brand names on e-commerce platforms, including Amazon.com and Walmart.com.¹⁷ As examples of the other brand names, Agri-Fab provided screenshots showing TBLGs sold on Amazon.com through a vendor called “PPOLB,” whose trademark is registered to a Chinese trading company, and TBLGs sold under the “Suchtale” brand on Amazon.com and Walmart.com.¹⁸

Agri-Fab submitted an affidavit from [*individual, title*], who attested that [*information about market research*].¹⁹ The [*information obtained through market research*].²⁰ Agri-Fab claimed [*information related to market research*].²¹ Agri-Fab stated that while this [*information related to market research*]²² [*information related to market research*].²³

Agri-Fab stated that only two Chinese companies (Nantong D&B Machinery Co., Ltd. and Qingdao Huatian Hand Truck Co., Ltd.) currently have a separate rate under the *AD Order*, and it does not believe either is substantially involved in the manufacture and sale of TBLGs.²⁴ Therefore, the applicable AD rate for the IORs’ entries of TBLGs would be the “China-wide” AD rate of 386.28 percent; however, Agri-Fab asserted, the prices at which covered merchandise is sold under the VEVOR brand and other brands indicates that AD duties of 386.28 percent likely were not deposited on U.S. imports of such merchandise.²⁵ To support this claim, Agri-Fab provided the following information for seven different models of VEVOR-branded TBLGs:

¹⁶ See April 25 Allegation at 13-14 and Attachments D-1, D-2, and E-1 through E-8, and May 15 Allegation at 13-14 and Attachments D-1, D-2, and E-1 through E-8.

¹⁷ See April 25 Allegation at 7, and May 15 Allegation at 7-8.

¹⁸ See April 25 Allegation at 12 and Attachments B-1, B-2, B-3, C-1 and C-3, and May 15 Allegation at 12-13 and Attachments B-1, B-2, B-3, C-1 and C-3.

¹⁹ See April 25 Allegation at 14-15 and Attachment F, and May 15 Allegation at 15 and Attachment F.

²⁰ See April 25 Allegation at 15 and Attachments F and G, and May 15 Allegation at 15 and Attachments F and G.

²¹ See April 25 Allegation at 15, and May 15 Allegation at 15.

²² Note: A Google search defines the [*name of identifier code*] for identifying businesses and organizations; it is essentially a unique identifier.

²³ See April 25 Allegation at 15 and Attachment H, and May 15 Allegation at 15 and Attachment H.

²⁴ See April 25 Allegation at 15-16, and May 15 Allegation at 15-16.

²⁵ See April 25 Allegation at 16, and May 15 Allegation at 16.

Model	VEVOR.com Price (mid-November 2024)	"Break-Even" Import Price w/ 386.28% Antidumping Duty Applied	Estimated Direct Cost of Production [<i>cost data</i>]
TC5001B: 42" tow sweeper	\$189.99	\$39.07	[<i>cost data</i>] [<i>model #</i>]
GT1112: 44" tow sweeper	\$212.99	\$43.80	[<i>cost data</i>] [<i>model #</i>]
GT1113: 48.5" tow sweeper	\$222.99	\$45.86	[<i>cost data</i>] [<i>model #</i>]
TC5001D: 52" tow sweeper	\$239.99	\$45.86	[<i>cost data</i>] [<i>model #</i>]
TBD100: 40" tow dethatcher	\$79.99	\$16.45	[<i>cost data</i>] [<i>model #</i>]
TBD120: 48" tow dethatcher	\$103.99	\$21.38	[<i>cost data</i>] [<i>model #</i>]
GT1509: 100lb. drop spreader / spike aerator	\$193.99	\$39.89	[<i>cost data</i>] [<i>model #</i>]

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Agri-Fab averred that the break-even import prices, which represent the value at which the lawn groomers would need to be declared to CBP to “break even” on the sale price if AD duties were properly deposited, are very conservative since they do not account for profit by the U.S. importer or reseller, or freight, insurance, fees, storage, or related charges incurred after importation.²⁷ Likewise, Agri-Fab maintained that the estimated production costs are extremely conservative because they represent [*information about production costs*

].²⁸ Agri-Fab argued that, despite these highly conservative figures, the “break even” import prices of the VEVOR-branded lawn groomers are [*amounts*] than [*information about production costs*].²⁹ Based on this analysis, Agri-Fab asserted that the only likely scenario is that the IORs are failing to pay the requisite AD deposits.³⁰

Based on its experience participating in TBLG AD and CVD proceedings before the Department of Commerce, Agri-Fab asserted that merchandise descriptions in manifest reports often do not identify TBLGs specifically, but refer to them generically as “tractor attachments” or “lawn and garden attachments,” or describe them a product other than TBLGs, such as “iron tools.”³¹ Agri-Fab submitted public manifest records identifying 2024 shipments of “lawn sweepers” consigned to UDWUEN, OSOUGVO, and IUCDRG.³² Agri-Fab noted the manifest records for shipments

²⁶ See April 25 Allegation at 16-17 and Attachment F, and May 15 Allegation at 16-17 and Attachment F.

²⁷ See April 25 Allegation at 16-18 and Attachment F, and May 15 Allegation at 16-18 and Attachment F.

²⁸ See April 25 Allegation at 17-18 and Attachment F, and May 15 Allegation at 17-18 and Attachment F.

²⁹ See April 25 Allegation at 18 and Attachment F, and May 15 Allegation at 18 and Attachment F.

³⁰ See April 25 Allegation at 18 and Attachment F, and May 15 Allegation at 18-19 and Attachment F.

³¹ See April 25 Allegation at 19, and May 15 Allegation at 19.

³² See April 25 Allegation at 19-20 and Attachments I-1 and I-2, and May 15 Allegation at 20 and Attachments I-1, I-2, and I-3.

consigned to UDWUEN and IUCDRG include references to VEVOR.³³ Agri-Fab also noted the manifest records identify two main shippers, Shanghai Aote E-Commerce Co., Ltd. (Shanghai Aote), located in China, and HK Sishun Trade Co., Limited, a Chinese company based in Hong Kong, and maintained the latter company is related to Shanghai Sishun E-COMMERCE Co., Ltd., the current registrant and administrative owner of the “VEVOR.com” website.³⁴

In assessing the facts provided in the April 25 Allegation and the May 15 Allegation, CBP found the information submitted by Agri-Fab reasonably suggested that the IORs entered merchandise covered by the *AD Order* into the customs territory of the United States through evasion.³⁵

Notice of Initiation of Investigation and Interim Measures

Document Image System Documents

After initiating the investigations, CBP reviewed documentation, specifically, entry summaries (*i.e.*, CBP Form 7501s), invoices, and packing lists in the Automated Commercial Environment (ACE) Document Image System (DIS) for entries by the IORs during the period of investigation (POI). Based on its review of these documents, CBP observed that LXQ Trading, Nanjing Fengjiao, and SSG Group entered compost spreaders under HTS number 8432.80.0080, which is currently used to classify merchandise covered by the *AD Order*.³⁶ The entry summaries showed that the country of origin was China and that LXQ Trading, Nanjing Fengjiao, and SSG Group did not declare any AD duties on the compost spreaders.³⁷ In addition, entry summaries, invoices, and packing lists in DIS for POI entries by Jiangshan Zhiyuan showed that it entered surface aerators classified under HTS number 8479.89.9599, which is not an HTS number used to classify merchandise covered by the *AD Order*.³⁸ Based on the entry summaries, Jiangshan

³³ See April 25 Allegation at 20 and Attachment I-2, and May 15 Allegation at 20 and Attachments I-2 and I-3. Specifically, the shipment records contain references to “VEVOR.NET.”

³⁴ See April 25 Allegation at 20 and Attachments I-1, I-2, and J, and May 15 Allegation at 20-21 and Attachments I-1, I-2, I-3, and J.

³⁵ See EAPA 8151 Initiation Memorandum, EAPA 8152 Initiation Memorandum, EAPA 8153 Initiation Memorandum, EAPA 8154, 8194, 8195 and 8196 Initiation Memorandum, and EAPA 8150 and 8197 Initiation Memorandum.

³⁶ See CBP Memorandum, “EAPA Cons. Case 8150 – Placing Information from LXQ Trading Inc. on the Record” (November 25, 2025) (LXQ Trading DIS Documents Memorandum) at Attachment 1 (entry number [# 9025]; CBP Memorandum, “EAPA Cons. Case 8150 – Placing Information from Nanjing Fengjiao Import & Export on the Record” (November 25, 2025) (Nanjing Fengjiao DIS Documents Memorandum) at Attachments 1 and 2 (entry numbers [# 7783 and [# 7949, respectively); and CBP Memorandum, “EAPA Cons. Case 8150 – Placing Information from SSG Group Imports Co. on the Record” (November 25, 2025) (SSG Group DIS Documents Memorandum) at Attachment 1 (entry number [# 2327); *see also AD Order* at 74 FR at 38396. CBP notes that the HTS numbers currently used to classify merchandise subject to the *AD Order* are 8432.80.0010, 9603.50.0000, 8432.41.0000, 8432.42.0000, 8432.90.0060, 8432.90.0081, 8432.80.0080, and 8479.89.9596.

³⁷ *Id.*

³⁸ See CBP Memorandum, “EAPA Cons. Case 8150 – Placing Information from Jiangshan Zhiyuan Import & Export on the Record” (November 25, 2025) (Jiangshan Zhiyuan DIS Documents Memorandum) at Attachments 2 and 3 (entry numbers [# 3192 and [# 3382, respectively); *see also AD Order* at 74 FR at 38396. CBP notes that the invoices and packing lists listed a different HTS number, 8479.89.9499, but the entry summaries listed HTS number 8479.89.9599. HTS number 8479.89.9599 refers to “Machines and mechanical appliances having individual functions, not specified or included elsewhere in this chapter; parts thereof: Other: Other: Other.” See <https://hts.usitc.gov/>, Chapter 84.

Zhiyuan declared the country of origin as China and did not declare any AD duties on the surface aerators.³⁹ Finally, entry summaries, invoices, and packing lists in DIS for POI entries by Jiangshan Zhiyuan, LXQ Trading, Nanjing Fengjiao, and Shenzhen Wushida demonstrated that these IORs entered lawn sweepers under HTS number 8479.89.9599; the entry summaries showed that the country of origin was China and that Jiangshan Zhiyuan, LXQ Trading, Nanjing Fengjiao, and Shenzhen Wushida did not declare any AD duties for these entries of lawn sweepers.⁴⁰ CBP also noted from the entry summaries that the entered values ranged from \$1.83 to \$3.53 per unit for compost spreaders,⁴¹ \$2.00 to \$22.00 per unit for lawn sweepers,⁴² and \$13.11 to \$46.00 per unit for surface aerators.⁴³

CBP Data

CBP also reviewed data in its systems regarding POI entries made by the IORs of merchandise classified under the HTS numbers included in the *AD Order* and HTS number 8479.89.9599, which, as noted in the previous subsection, was used to classify entries of lawn sweepers and surface aerators.⁴⁴ As shown in the chart below, CBP found that each of the IORs entered merchandise during the POI that was classified with an HTS number in the *AD Order* (and/or HTS number 8479.89.9599) and reported as country of origin China, yet, in all cases, these entries were declared as type 01 (*i.e.*, as not subject to the *AD Order*).⁴⁵

IOR Name	Relevant HTS number(s) declared	Country of Origin Declared	Entry Type Declared
Amin World	8479.89.9599	China	01
Jiangshan Zhiyuan	8432.80.0080, 8479.89.9599	China	01
LXQ Trading	8432.80.0080, 8479.89.9599	China	01
Nanjing Fengjiao	8432.80.0080, 8479.89.9599, 9603.50.0000	China	01

³⁹ *Id.*

⁴⁰ See Jiangshan Zhiyuan DIS Documents Memorandum at Attachment 1 (entry number [#]0420); LXQ Trading DIS Documents Memorandum at Attachments 2, 3, and 4 (entry numbers [#]4741, [#]4758, and [#]4766, respectively); Nanjing Fengjiao DIS Documents Memorandum at Attachments 2, 3, 4, and 5 (entry numbers [#]7949, [#]0596, [#]9966, and [#]1194, respectively); and CBP Memorandum, “EAPA Cons. Case 8150 – Placing Information from Shenzhen Wushida Industry Co., Ltd. on the Record” (November 25, 2025) (Shenzhen Wushida DIS Documents Memorandum) at Attachments 1 and 2 (entry numbers [#]2055 and [#]2310, respectively).

⁴¹ See LXQ Trading DIS Documents Memorandum at Attachment 1, Nanjing Fengjiao DIS Documents Memorandum at Attachments 1 and 2, and SSG Group DIS Documents Memorandum at Attachment 1.

⁴² See Jiangshan Zhiyuan DIS Documents Memorandum at Attachment 1, LXQ Trading DIS Documents Memorandum at Attachments 2, 3, and 4, Nanjing Fengjiao DIS Documents Memorandum at Attachments 2, 3, 4, and 5, and Shenzhen Wushida DIS Documents Memorandum at Attachments 1 and 2.

⁴³ See Jiangshan Zhiyuan DIS Documents Memorandum at Attachments 2 and 3.

⁴⁴ See Post-Receipt Data Report for EAPA Case Number 8151 (May 30, 2025) (CBP Post-Receipt Data for Amin World); CBP Post-Receipt Data for Jiangshan Zhiyuan; CBP Post-Receipt Data for LXQ Trading; CBP Post-Receipt Data for Nanjing Fengjiao; CBP Post-Receipt Data for New Wayn; CBP Post-Receipt Data for Shaoxing Youcheng; CBP Post-Receipt Data for Shenzhen Wushida; CBP Post-Receipt Data for SSG Group; and Post-Receipt Data Report for EAPA Case Number 8152 (May 30, 2025) (CBP Post-Receipt Data for Super Blooming Star).

⁴⁵ *Id.*

IOR Name	Relevant HTS number(s) declared	Country of Origin Declared	Entry Type Declared
New Wayn	9603.50.0000	China	01
Shaoxing Youcheng	8479.89.9599	China	01
Shenzhen Wushida	8432.80.0080, 8479.89.9599, 9603.50.0000	China	01
SSG Group	8432.80.0080, 8479.89.9599, 9603.50.0000	China	01
Super Blooming Star	8432.80.0080, 8479.89.9599	China	01

Analysis

In assessing the record evidence, CBP found there was reasonable suspicion that the IORs entered Chinese-origin merchandise covered by the *AD Order* into the customs territory of the United States through evasion by failing to declare the merchandise as subject to, and subsequently failing to pay, AD duties on covered merchandise. Entry summaries, invoices, and packing lists in DIS for POI entries for some of the IORs, namely, Jiangshan Zhiyuan, LXQ Trading, Nanjing Fengjiao, Shenzhen Wushida, and SSG Group, confirm these IORs entered compost spreaders, lawn sweepers, and surface aerators with a country of origin of China during the POI but did not declare them as subject to the *AD Order*.⁴⁶ These same documents show that the compost spreaders were classified under HTS number 8432.80.0080, which is an HTS number currently used to classify merchandise covered by the *AD Order*, and the lawn sweepers and surface aerators were classified under HTS number 8479.89.9599, which is not used to classify merchandise covered by the *AD Order*, thereby indicating some of the entries were misclassified.⁴⁷ CBP data for all the IORs reveals that they entered merchandise during the POI that was classified under HTS numbers 8432.80.0080, 9603.50.0000, and/or 8479.89.9599 and reported as having a country of origin of China, yet, in all instances, the IORs declared these entries as type 01 (*i.e.*, as not subject to the *AD Order*).⁴⁸ As a result, the IORs did not deposit any AD duties on these entries, some of which appear to be misclassified.

Moreover, a comparison of the per-unit entered values on the entry summaries in the Document Image System (DIS) documents to the per-unit values provided in the allegations suggested that the IORs' entered values were grossly undervalued. The entered values for lawn sweepers shown on the entry summaries in the DIS documents ranged from \$2.00 to \$22.00 per unit.⁴⁹ Meanwhile, the break-even import prices (*i.e.*, the value at which the lawn groomers would need

⁴⁶ See all attachments in Jiangshan Zhiyuan DIS Documents Memorandum, LXQ Trading DIS Documents Memorandum, Nanjing Fengjiao DIS Documents Memorandum, Shenzhen Wushida DIS Documents Memorandum, and SSG Group DIS Documents Memorandum.

⁴⁷ *Id.*

⁴⁸ See CBP Post-Receipt Data for Amin World; CBP Post-Receipt Data for Jiangshan Zhiyuan; CBP Post-Receipt Data for LXQ Trading; CBP Post-Receipt Data for Nanjing Fengjiao; CBP Post-Receipt Data for New Wayn; CBP Post-Receipt Data for Shaoxing Youcheng; CBP Post-Receipt Data for Shenzhen Wushida; CBP Post-Receipt Data for SSG Group; and CBP Post-Receipt Data for Super Blooming Star.

⁴⁹ See Jiangshan Zhiyuan DIS Documents Memorandum at Attachment 1, LXQ Trading DIS Documents Memorandum at Attachments 2, 3, and 4, Nanjing Fengjiao DIS Documents Memorandum at Attachments 2, 3, 4, and 5, and Shenzhen Wushida DIS Documents Memorandum at Attachments 1 and 2.

to be declared to CBP to “break even” on the sales price if AD duties were deposited) submitted by Agri-Fab for lawn sweepers ranged from \$39.07 to \$45.86 per unit, and Agri-Fab’s estimated production costs for lawn sweepers ranged from \$[*amount*] to \$[*amount*] per unit.⁵⁰ Although the invoices and packing lists in the DIS documents did not specify the model numbers of the lawn sweepers⁵¹ and therefore did not allow for model-specific comparisons to the values submitted by Agri-Fab, the significant difference between the IORs’ entered values and the information provided by Agri-Fab indicated that the IORs undervalued the imported products in addition to failing to declare and pay AD duties.

Therefore, on September 3, 2025, CBP imposed interim measures on the IORs’ entries of covered merchandise pursuant to this investigation, and on September 10, 2025, CBP issued its notice of initiation of investigation and interim measures.⁵² At that time, CBP consolidated EAPA investigations 8150-8154 and 8194-8197 against the IORs into a single investigation, EAPA Consolidated Case 8150.⁵³

Post-Interim Measures

Requests for Information from the IORs

On September 30, 2025, CBP issued a request for information (RFI) via email to each of the IORs subject to this EAPA investigation.⁵⁴ The RFIs included questions and requests for documentation relating to the IORs’ corporate structure, accounting and financial practices, sales and purchases of covered merchandise, valuation of imported merchandise, Customs entry and

⁵⁰ See April 25 Allegation at 16-18 and Attachment F, and May 15 Allegation at 16-19 and Attachment F.

⁵¹ See Jiangshan Zhiyuan DIS Documents Memorandum at Attachment 1, LXQ Trading DIS Documents Memorandum at Attachments 2, 3, and 4, Nanjing Fengjiao DIS Documents Memorandum at Attachments 2, 3, 4, and 5, and Shenzhen Wushida DIS Documents Memorandum at Attachments 1 and 2.

⁵² See CBP Email, “U.S. Customs and Border Protection: EAPA Consolidated Case 8150” (September 3, 2025) and CBP Memorandum, “Notice of Initiation of Investigation and Interim Measures - EAPA Cons. Case 8150” (September 10, 2025) (NOI).

⁵³ *Id.* at 11-12.

⁵⁴ See CBP Letters, “EAPA CONSOLIDATED CASE 8150 - Request for Information from Amin World Inc.” (Amin World RFI); “EAPA CONSOLIDATED CASE 8150 - Request for Information from Jiangshan Zhiyuan Import & Export” (Jiangshan Zhiyuan RFI); “EAPA CONSOLIDATED CASE 8150 - Request for Information from LXQ Trading Inc.” (LXQ Trading RFI); “EAPA CONSOLIDATED CASE 8150 - Request for Information from Nanjing Fengjiao Import & Export” (Nanjing Fengjiao RFI); “EAPA CONSOLIDATED CASE 8150 - Request for Information from New Wayn Inc.” (New Wayn RFI); “EAPA CONSOLIDATED CASE 8150 - Request for Information from Shaoxing Youcheng Import and Export” (Shaoxing Youcheng RFI); “EAPA CONSOLIDATED CASE 8150 - Request for Information from Shenzhen Wushida Industry Co., Ltd.” (Shenzhen Wushida RFI); “EAPA CONSOLIDATED CASE 8150 - Request for Information from SSG Group Imports Co.” (SSG Group RFI); “EAPA CONSOLIDATED CASE 8150 - Request for Information from Super Blooming Star Inc.” (Super Blooming Star RFI), all dated September 30, 2025, and CBP Emails, “EAPA Cons. Case 8150 - U.S. CBP Request for Information from Amin World Inc.”; “EAPA Cons. Case 8150 - U.S. CBP Request for Information from Jiangshan Zhiyuan Import & Export”; “EAPA Cons. Case 8150 - U.S. CBP Request for Information from LXQ Trading Inc.”; “RE: EAPA Cons. Case 8150 - U.S. CBP Request for Information from Nanjing Fengjiao Import & Export”; “RE: EAPA Cons. Case 8150 - U.S. CBP Request for Information from New Wayn Inc.”; “RE: EAPA Cons. Case 8150 - U.S. CBP Request for Information from Shaoxing Youcheng Import and Export”; “RE: EAPA Cons. Case 8150 - U.S. CBP Request for Information from Shenzhen Wushida Industry Co., Ltd.”; “RE: EAPA Cons. Case 8150 - U.S. CBP Request for Information from SSG Group Imports Co.”; and “RE: EAPA Cons. Case 8150 - U.S. CBP Request for Information from Super Blooming Star Inc.”, all dated September 30, 2025.

compliance, and sales reconciliations.⁵⁵ Each RFI listed specific entries made by that particular IOR during the POI and requested that the IOR provide pertinent supporting documentation for each of those entries.⁵⁶

None of the IORs responded to the RFI by the stated deadline of October 14, 2025.⁵⁷ Thus, on October 15, 2025, CBP sent an email to each of the IORs, granting each IOR one additional opportunity to submit a response to the RFI and establishing the new deadline as October 22, 2025.⁵⁸ None of the IORs responded to the RFI despite being given a second chance to do so.

Requests for Information from Suppliers

Based on information from CBP systems, on October 16, 2025, CBP issued RFIs via email to three suppliers of covered merchandise to the IORs, Qingdao Huilicheng Trading Co., Ltd. (Qingdao Huilicheng or Supplier 1), Shanghai Aote (also referred to as Supplier 2), and [*supplier name*] ([*supplier name*] or Supplier 3).⁵⁹ CBP requested information and documentation pertaining to the suppliers' corporate structure, accounting/financial practices, sales/exports of covered merchandise to the IORs, production of covered merchandise (for manufacturers), and sales/production reconciliations.⁶⁰ Each RFI identified specific bill of lading numbers for shipments associated with that supplier and asked that the supplier submit relevant supporting documentation for those shipments.⁶¹

None of these three suppliers submitted a response to the RFIs by the stated deadline of October 30, 2025.⁶² Therefore, on November 6, 2025, CBP sent an email to each supplier, stating that CBP was providing one additional opportunity to respond to the RFI and setting the new

⁵⁵ *Id.*

⁵⁶ *Id.*

⁵⁷ *Id.*

⁵⁸ See CBP Emails, "EAPA Cons. Case 8150 - U.S. CBP Request for Information (RFI) - Warning for Amin World Inc."; "EAPA Cons. Case 8150 - U.S. CBP Request for Information (RFI) - Warning for Jiangshan Zhiyuan Import & Export"; "EAPA Cons. Case 8150 - U.S. CBP Request for Information (RFI) - Warning for LXQ Trading Inc."; "EAPA Cons. Case 8150 - U.S. CBP Request for Information (RFI) - Warning for Nanjing Fengjiao Import & Export"; "EAPA Cons. Case 8150 - U.S. CBP Request for Information (RFI) - Warning for New Wayn Inc."; "EAPA Cons. Case 8150 - U.S. CBP Request for Information (RFI) - Warning for Shaoxing Youcheng Import and Export"; "EAPA Cons. Case 8150 - U.S. CBP Request for Information (RFI) - Warning for Shenzhen Wushida Industry Co., Ltd."; "EAPA Cons. Case 8150 - U.S. CBP Request for Information (RFI) - Warning for SSG Group Imports Co."; and "EAPA Cons. Case 8150 - U.S. CBP Request for Information (RFI) - Warning for Super Blooming Star Inc.," all dated October 15, 2025.

⁵⁹ See CBP Letters, "EAPA CONSOLIDATED CASE 8150 - Request for Information from Qingdao Huilicheng Trading Co., Ltd."; "EAPA CONSOLIDATED CASE 8150 - Request for Information from Shanghai Aote E-Commerce Co., Ltd."; and "EAPA CONSOLIDATED CASE 8150 - Request for Information from [*Supplier 3*]"; all dated October 16, 2025, and CBP Emails, "RE: EAPA Consolidated Case 8150 - U.S. CBP Request for Information from Qingdao Huilicheng Trading Co., Ltd."; "EAPA Consolidated Case 8150 - U.S. CBP Request for Information from Shanghai Aote E-Commerce Co., Ltd."; and "EAPA Consolidated Case 8150 - U.S. CBP Request for Information from Zhejiang Yiwu Lekai Industry and Trade Co., Ltd.," all dated October 16, 2025.

⁶⁰ *Id.*

⁶¹ *Id.*

⁶² *Id.*

deadline as November 13, 2025.⁶³ None of the suppliers submitted a response to the RFI after being given a second opportunity to respond.

In addition, on November 26, 2025, CBP sent, via FedEx, the RFIs to Qingdao Huilicheng and [[Supplier 3](#)] to their addresses in China, and on December 3, 2025, CBP sent the RFI via FedEx to Shanghai Aote at its address in China.⁶⁴ Although CBP used the address shown for Qingdao Huilicheng on invoices and packing lists contained in DIS for POI entries by LXQ Trading and SSG Group to send the RFI, FedEx was unable to deliver the RFI to Qingdao Huilicheng, stating the “Customer {was} not available or business closed.”⁶⁵ Similarly, while CBP shipped the RFI to [[Supplier 3](#)] using the address shown for this supplier on the invoice and packing list for a POI entry by IOR Super Blooming Star, FedEx was unable to deliver the RFI, providing the reasons as “Incorrect address – Recipient moved” and “Incorrect address.”⁶⁶ For the RFI sent to Shanghai Aote via FedEx, CBP used the address shown on sea waybills contained in DIS for POI entries by LXQ Trading and SSG Group.⁶⁷ None of the three suppliers ever submitted a response to the RFIs.

Opportunity to Provide Business Confidential and Public Versions of DIS Documents

On October 14, 2025, CBP requested that Jiangshan Zhiyuan, LXQ Trading, Nanjing Fengjiao, Shenzhen Wushida, and SSG Group provide a business confidential and public version of certain documents in ACE DIS for the entries that CBP discussed in the NOI under the subsection “Document Image System Documents” above.⁶⁸ None of these IORs responded to CBP’s request by the deadline, which was October 28 2025.⁶⁹ Accordingly, on October 29, 2025, CBP requested for a second time that these five IORs submit business confidential and public versions

⁶³ See CBP Emails, “EAPA Cons. Case 8150 - U.S. CBP Request for Information - Warning for Qingdao Huilicheng Trading Co., Ltd.”; “EAPA Cons. Case 8150 - U.S. CBP Request for Information - Warning for Shanghai Aote E-Commerce Co., Ltd.”; and “EAPA Cons. Case 8150 - U.S. CBP Request for Information - U.S. CBP Request for Information from [[Supplier 3](#)],” all dated November 6, 2025.

⁶⁴ See CBP Memoranda, “EAPA Cons. Case 8150 – FedEx Shipment and Tracking Information for Request for Information to Qingdao Huilicheng Trading Co., Ltd.” (Qingdao Huilicheng FedEx Memo); “EAPA Cons. Case 8150 – FedEx Shipment and Tracking Information for Request for Information to [[Supplier 3](#)]” ([[Supplier 3](#)] FedEx Memo); and “EAPA Cons. Case 8150 – FedEx Shipment Tracking and Proof of Delivery for Request for Information to Shanghai Aote E-Commerce Co., Ltd.” (Shanghai Aote FedEx Memo), all dated December 12, 2025.

⁶⁵ See Qingdao Huilicheng FedEx Memo at Attachment, LXQ Trading DIS Documents Memorandum at Attachments 1, 2, 3, and 4, and SSG Group DIS Documents Memorandum at Attachment 1.

⁶⁶ See [[Supplier 3](#)] FedEx Memo at Attachments 1 and 2.

⁶⁷ See Shanghai Aote FedEx Memo at Attachment, LXQ Trading DIS Documents Memorandum at Attachments 1, 2, 3, and 4, and SSG Group DIS Documents Memorandum at Attachment 1

⁶⁸ See CBP Emails, “EAPA Consolidated Case 8150 - Request for Jiangshan Zhiyuan Import & Export to Submit Business Confidential and Public Versions of DIS Documents”; “EAPA Consolidated Case 8150 - Request for LXQ Trading Inc. to Submit Business Confidential and Public Versions of DIS Documents”; “EAPA Consolidated Case 8150 - Request for Nanjing Fengjiao Import & Export to Submit Business Confidential and Public Versions of DIS Documents”; “EAPA Consolidated Case 8150 - Request for Shenzhen Wushida Industry Co., Ltd. to Submit Business Confidential and Public Versions of DIS Documents”; and “EAPA Consolidated Case 8150 - Request for SSG Group Imports Co. to Submit Business Confidential and Public Versions of DIS Documents,” all dated October 14, 2025 (collectively, CBP October 14 Emails); *see also* NOI at 8-9.

⁶⁹ See CBP October 14 Emails.

of the DIS documents by the new deadline of November 5, 2025.⁷⁰ Once again, none of the IORs responded to CBP's request. In both instances, CBP warned the IORs that if they failed to respond to CBP's requests by the deadline, then all of the selected DIS documents for the entries at issue might be considered public documents because no request was ever made to CBP for business confidential treatment, and as a result, the originally submitted DIS documents might be provided to the parties to the investigation.⁷¹ Since Jiangshan Zhiyuan, LXQ Trading, Nanjing Fengjiao, Shenzhen Wushida, and SSG Group did not respond to CBP's requests, on November 25, 2025, CBP placed the entry summary, invoice, packing list, and bill of lading (or sea waybill), among the DIS documents for the entries at issue, on the record of this investigation, with only limited information redacted.⁷²

As noted above, in the NOI, CBP observed from the DIS documents, specifically, entry summaries, invoices, and packing lists, that surface aerators and lawn sweepers were entered under HTS number 8479.89.9599 and thereby appeared to be misclassified.⁷³ In addition, CBP noted that the IORs declared China as the country of origin but did not declare the entries as subject to the *AD Order* (*i.e.*, the entries were declared as type "01").⁷⁴ Moreover, CBP observed that the IORs' entered values were extremely undervalued.⁷⁵

CBP has made additional observations from the DIS documents beyond those discussed in the NOI. First and foremost, the products on the invoices and packing lists for every entry in each set of DIS documents were merely listed as "compost spreader," "surface aerator," and "lawn sweeper," with no other information about the merchandise, such as size, features, or even model numbers provided for these products.⁷⁶ Also, every entry in each set of DIS documents consisted of a multitude of products, not just the compost spreaders, surface aerators, and lawn sweepers.⁷⁷ Additionally, except for one entry, the gross weights declared on the entry summaries differed from the gross weights listed on the packing lists, and in many cases, the weight disparities were significant.⁷⁸ The percentage difference between the gross weights on the packing list and entry summary for each compost spreader, surface aerator, and lawn sweeper listed in the DIS

⁷⁰ See CBP Emails, "EAPA Consolidated Case 8150 - Second Request for Jiangshan Zhiyuan Import & Export to Submit Business Confidential and Public Versions of DIS Documents"; "EAPA Consolidated Case 8150 - Second Request for LXQ Trading Inc. to Submit Business Confidential and Public Versions of DIS Documents"; "EAPA Consolidated Case 8150 - Second Request for Nanjing Fengjiao Import & Export to Submit Business Confidential and Public Versions of DIS Documents"; "EAPA Consolidated Case 8150 - Second Request for Shenzhen Wushida Industry Co., Ltd. to Submit Business Confidential and Public Versions of DIS Documents"; and "EAPA Consolidated Case 8150 - Second Request for SSG Group Imports Co. to Submit Business Confidential and Public Versions of DIS Documents," all dated October 29, 2025 (collectively, CBP October 29 Emails).

⁷¹ See CBP October 14 Emails and CBP October 29 Emails.

⁷² See Jiangshan Zhiyuan DIS Documents Memorandum, LXQ Trading DIS Documents Memorandum, Nanjing Fengjiao DIS Documents Memorandum, Shenzhen Wushida DIS Documents Memorandum, and SSG Group DIS Documents Memorandum.

⁷³ See NOI at 8 and 10.

⁷⁴ *Id.* at 8-10.

⁷⁵ *Id.* at 9-11.

⁷⁶ See Jiangshan Zhiyuan DIS Documents Memorandum, LXQ Trading DIS Documents Memorandum, Nanjing Fengjiao DIS Documents Memorandum, Shenzhen Wushida DIS Documents Memorandum, and SSG Group DIS Documents Memorandum.

⁷⁷ *Id.*

⁷⁸ *Id.*

documents is shown in the chart below; for further details, including the gross weights shown on the entry summaries and packing lists, *see* the Appendix to this memorandum.

IOR Name	Entry Number	Product Description on Invoice and Packing List	Percent Difference between Gross Weight on Packing List and Entry Summary
Jiangshan Zhiyuan	[#] 0420	Lawn Sweeper	44.96%
Jiangshan Zhiyuan	[#] 3192	Surface Aerator	62.35%
Jiangshan Zhiyuan	[#] 3382	Surface Aerator	-123.68%
LXQ Trading	[#] 9025	Compost Spreader	40.22%
LXQ Trading	[#] 4741	Lawn Sweeper	0.00%
LXQ Trading	[#] 4758	Lawn Sweeper	-48.23%
LXQ Trading	[#] 4766	Lawn Sweeper	8.72%
Nanjing Fengjiao	[#] 7783	Compost Spreader	25.35%
Nanjing Fengjiao	[#] 7949	Compost Spreader	-78.40%
Nanjing Fengjiao	[#] 7949	Lawn Sweeper	20.68%
Nanjing Fengjiao	[#] 0596	Lawn Sweeper	-60.31%
Nanjing Fengjiao	[#] 9966	Lawn Sweeper	51.63%
Nanjing Fengjiao	[#] 1194	Lawn Sweeper	67.57%
Shenzhen Wushida	[#] 2055	Lawn Sweeper	20.92%
Shenzhen Wushida	[#] 2310	Lawn Sweeper	55.33%
SSG Group	[#] 2327	Compost Spreader	15.00%

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Further, CBP observed that the waybills in the DIS documents for LXQ Trading and SSG Group contained a reference to VEVOR, specifically in the email address (QUAN.GU@VEVOR.NET) that was listed for the shipper (Shanghai Aote).⁸⁰

Additional CBP Data Placed on the Record

As noted above, the RFIs issued to each IOR listed specific entries made by that IOR during the POI and requested that the IOR submit specific documents for each of those entries.⁸¹ On December 4, 2025, CBP placed on the record data from its systems corresponding to most or all of the entries listed in the RFIs in Appendix I.⁸² Specifically, CBP placed information on the

⁷⁹ *Id.*

⁸⁰ *See* LXQ Trading DIS Documents Memorandum and SSG Group DIS Documents Memorandum.

⁸¹ *See* Amin World RFI at Appendix I; Jiangshan Zhiyuan RFI at Appendix I; LXQ Trading RFI at Appendix I; Nanjing Fengjiao RFI at Appendix I; New Wayn RFI at Appendix I; Shaoxing Youcheng RFI at Appendix I; Shenzhen Wushida RFI at Appendix I; SSG Group RFI at Appendix I; and Super Blooming Star RFI at Appendix I.

⁸² *See* CBP Memoranda, “EAPA Cons. Case 8150 – Placing CBP Data for Jiangshan Zhiyuan Import & Export on the Record” (CBP Data for Jiangshan Zhiyuan Entries in RFI); “EAPA Cons. Case 8150 – Placing CBP Data for LXQ Trading Inc. on the Record” (CBP Data for LXQ Trading Entries in RFI); “EAPA Cons. Case 8150 – Placing CBP Data for Nanjing Fengjiao Import & Export on the Record” (CBP Data for Nanjing Fengjiao Entries in RFI); “EAPA Cons. Case 8150 – Placing CBP Data for Shaoxing Youcheng Import and Export on the Record” (CBP Data for Shaoxing Youcheng Entries in RFI); “EAPA Cons. Case 8150 – Placing CBP Data for Shenzhen Wushida Industry Co., Ltd. on the Record” (CBP Data for Shenzhen Wushida Entries in RFI); “EAPA Cons. Case 8150 –

record showing the HTS number(s) reported to CBP (*i.e.*, 8432.80.0080, 8479.89.9599, and/or 9603.50.0000) and/or the merchandise description for each such entry.⁸³ Merchandise descriptions were included in the information placed on the record where one or more of the following terms related to lawn groomers had been specified: lawn, sweeper, aerator, spreader, and/or dethatcher.⁸⁴

Comments on Valuation

On December 4, 2025, CBP requested that parties to the investigation provide comments, along with supporting documentation, regarding the valuation of compost spreaders, lawn sweepers, and surface aerators.⁸⁵ In its request, CBP cited the range of entered values shown on the entry summaries in the DIS documents placed on the record (*i.e.*, \$1.83 to \$3.53 per unit for compost spreaders, \$2.00 to \$22.00 per unit for lawn sweepers, and \$13.11 to \$46.00 per unit for surface aerators).⁸⁶ On December 18, 2025, Agri-Fab submitted comments on valuation to CBP.⁸⁷ No other parties to the investigation filed comments on valuation.

Agri-Fab claimed the DIS documents for Jiangshan Zhiyuan, LXQ Trading, Nanjing Fengjiao, Shenzhen Wushida, and SSG Group that CBP placed on the record are replete with insufficient or potentially inaccurate information, including overly vague product descriptions on invoices and packing lists and discrepancies between the weights shown on shipping documents and corresponding entry summaries.⁸⁸ Agri-Fab argued that although the IORs were in the best position to provide additional information about the product descriptions and the discrepancies on the DIS documents, none of the IORs responded to CBP's RFIs or otherwise cooperated with CBP in this investigation.⁸⁹ Therefore, Agri-Fab asserted, CBP should apply adverse inferences in making its determination as to evasion.⁹⁰

Agri-Fab argued that the commercial invoices and packing lists in the DIS documents appear to reflect merchandise that is covered by the *AD Order*, since those documents list "lawn sweepers," "surface aerators," and "compost spreaders" that have a fully-assembled unit weight

Placing CBP Data for SSG Group Imports Co. on the Record" (CBP Data for SSG Group Entries in RFI); and "EAPA Cons. Case 8150 – Placing CBP Data for Super Blooming Star Inc. on the Record" (CBP Data for Super Blooming Star Entries in RFI), all dated December 4, 2025. For SSG Group and Super Blooming Star, the respective memoranda listed half or less than half of the entries in Appendix I of each IOR's RFI. CBP did not place this information on the record for IORs Amin World and New Wayn. However, for this determination, CBP is treating Amin World, New Wayn, and Super Blooming Star (for which CBP did place this information on the record) as doing business as (dba) companies of one another, given they all operate from the same address. *See* page 1 of this memorandum; *see also* April 25 Allegation at 5-6 and Amin World RFI, New Wayn RFI, and Super Blooming Star RFI at their respective cover pages. As Amin World, New Wayn, and Super Blooming Star did not respond to the RFIs, there is no information on the record indicating that these three IORs' addresses differ.

⁸³ *Id.*

⁸⁴ *Id.*

⁸⁵ *See* CBP Memorandum, "EAPA Cons. Case 8150 – Request from Parties to the Investigation for Comments on Valuation" (December 4, 2025).

⁸⁶ *Id.*; *see also* NOI at 9 and above subsection in this notice entitled, "Document Image System Documents."

⁸⁷ *See* Letter from Agri-Fab, "EAPA Consolidated Case No. 8150; Agri-Fab's Comments on Valuation" (December 18, 2025) (Valuation Comments).

⁸⁸ *Id.* at 4-5.

⁸⁹ *Id.* at 5.

⁹⁰ *Id.*

of 200 pounds or less.⁹¹ Agri-Fab also argued that all the entry summaries in the DIS documents list China as the country of origin, and all the shipping documents in the DIS documents list shippers and ports of lading located in China.⁹² Agri-Fab claimed the IORs failed to demonstrate that the lawn sweepers, surface aerators, and compost spreaders were not covered by the *AD Order* based on their physical characteristics; thus, Agri-Fab asserted that CBP should apply an inference adverse to the IORs and find that the products described as “lawn sweepers,” “surface aerators,” and “compost spreaders” on the invoices and packing lists are covered merchandise.⁹³

Agri-Fab stated that TBLGs are manufactured and sold in different sizes and exhibit different features, and these differences may have a significant impact on the prices of products within each category of TBLGs.⁹⁴ For example, Agri-Fab noted that tow-behind aerators can be made with two types of aerating components, plugs and spikes, with plug aerators typically being more expensive due to the plug knife components.⁹⁵ Agri-Fab also stated that lawn sweepers and aerators are produced at different widths, and broadcast spreaders are manufactured with different capacity hoppers, with larger-sized TBLGs commanding higher prices.⁹⁶ Thus, Agri-Fab declared, a “surface aerator” could denote a 40-inch spike aerator that sells for \$199 or a 48-inch plug aerator that sells for \$379.⁹⁷

Due to the variation in prices for distinct products within each category of lawn groomers, Agri-Fab claimed that the imported lawn groomers need to be correlated with lawn groomers of specific sizes and features to ascertain the appropriate valuation.⁹⁸ Agri-Fab asserted that it would not be appropriate to use the weights on the DIS documents to approximate size because, for every entry except one, there are considerable discrepancies between the gross weights declared on the entry summaries and the gross weights listed on the packing lists.⁹⁹ Agri-Fab averred that since the weight reported on the entry summary should be taken from the commercial documents, any disparity between the weights on the packing list and the entry summary should be minimal or non-existent.¹⁰⁰ Agri-Fab argued that the existence of weight disparities, particularly at such magnitude, casts doubt on the legitimacy of the DIS documents and renders them unreliable.¹⁰¹ Because the IORs did not explain the reasons for the weight discrepancies, Agri-Fab maintained that CBP should select from among the facts otherwise available and apply, as an adverse inference, the highest weight reported for each category of lawn groomer in the DIS documents to ascertain the equivalent lawn groomer product and hence determine the appropriate valuation.¹⁰² This information is summarized in the chart below:

⁹¹ *Id.* at 6-7.

⁹² *Id.* at 7.

⁹³ *Id.*

⁹⁴ *Id.* at 5.

⁹⁵ *Id.*

⁹⁶ *Id.*

⁹⁷ *Id.*

⁹⁸ *Id.*

⁹⁹ *Id.* at 7-8 and Exhibit CV.A.

¹⁰⁰ *Id.* at 8.

¹⁰¹ *Id.* at 7-8.

¹⁰² *Id.* at 8-9.

Lawn Groomer Category	Highest Unit Weight Reported on DIS Documents	Source of Highest Unit Weight	Lawn Groomer Product with Most Closely Corresponding Weight
Lawn Sweepers	54.67 kilograms (120.52 pounds)	Nanjing Fengjiao entry summary for entry no. [#]0596	52-inch tow lawn sweeper such as Agri-Fab's Model 45-0546 (95 pounds) ¹⁰³
Surface Aerators	68 kilograms (149.91 pounds)	Jiangshan Zhiyuan entry summary for entry no. [#]3382	48-inch tow plug aerator such as Agri-Fab's Model 45-0299 (94 pounds) ¹⁰⁴
Compost Spreaders	15.90 kilograms (35.05 pounds)	LXQ Trading packing list for entry no. [#]9025	130 lb. tow broadcast spreader, such as Agri-Fab's Model 45-0463 (37 pounds) ¹⁰⁵

Referring to the “break-even” prices provided in its allegations, Agri-Fab asserted those hypothetical prices were overly generous in estimating the degree of undervaluation that is occurring.¹⁰⁶ Agri-Fab argued that the prices on the DIS documents are completely unrealistic, as they would not cover even a fraction of the cost of raw materials used to produce the lawn groomers.¹⁰⁷ Agri-Fab provided U.S. Census 2024 import data for tow-behind aerators, spreaders, and dethatchers from Vietnam and Taiwan classified under HTSUS 8432.80.0010 and tow-behind sweepers classified under HTSUS 8479.89.9596 and noted the average unit import prices were \$58.04 for tow-behind aerators and spreaders and \$106.61 for tow-behind sweepers from Vietnam, and \$83.10 for tow-behind aerators and spreaders and \$51.12 for tow-behind sweepers from Taiwan.¹⁰⁸ Agri-Fab calculated that these prices dwarf the prices shown on the DIS documents by a factor of 16.4 to 45.4 for compost spreaders, 2.3 to 53.3 for lawn sweepers, and 1.3 to 6.3 for surface aerators.¹⁰⁹ Based on this information, Agri-Fab argued that CBP should find the declared entered values of the lawn sweepers, surface aerators, and compost spreaders on the DIS documents were grossly undervalued and thus do not represent appropriate appraised values under any valuation methodology set forth in 19 U.S.C. § 1401a.¹¹⁰

Agri-Fab claimed that in accordance with 19 U.S.C. § 1500, CBP has the authority to “fix the final appraisement of merchandise by ascertaining or estimating the value thereof,” through the methods of appraisement set forth in 19 U.S.C. § 1401a.¹¹¹ Thus, Agri-Fab proposed that CBP

¹⁰³ *Id.* at 9 and Exhibit CV.B.

¹⁰⁴ *Id.* at 9 and Exhibit CV.C.

¹⁰⁵ *Id.* at 9-10 and Exhibit CV.D.

¹⁰⁶ *Id.* at 10-11.

¹⁰⁷ *Id.* at 11.

¹⁰⁸ *Id.* at 11 and Exhibit CV.E. Agri-Fab stated that Taiwan and Vietnam are the two main countries other than China for which it knows of TBLG production in commercial quantities. Agri-Fab also stated that the import data contained landed duty-paid values.

¹⁰⁹ *Id.* at 11-12.

¹¹⁰ *Id.* at 12.

¹¹¹ *Id.*

appraise the value of covered merchandise in this EAPA investigation based on the prices at which comparable lawn groomers are offered for sale to U.S. customers on E-commerce marketplaces, based on the grounds that many of the E-commerce retailers identified in the allegations appear to be involved in the direct shipment of merchandise to U.S. customers.¹¹² Agri-Fab argued that merchandise offered for sale in the United States through direct shipment from a foreign factory or warehouse renders the online price equivalent to a “price actually paid or payable for merchandise that is sold for exportation to the United States,” *i.e.*, the basis of the transaction value method of valuation pursuant to 19 U.S.C. § 1401a.¹¹³ To that end, Agri-Fab provided prices, as shown below, for VEVOR-brand merchandise from the website VEVOR.com and argued that, as adverse inferences, CBP should appraise the value of the lawn sweepers, surface aerators, and compost spreaders reflected on the DIS documents using these prices.¹¹⁴ Additionally, Agri-Fab maintained that CBP should use these prices to adjust the declared values of all entries potentially covered by this investigation, including, but not limited to, the entries listed in the RFIs issued to Jiangshan Zhiyuan, LXQ Trading, Nanjing Fengjiao, Shenzhen Wushida, and SSG Group.¹¹⁵

Product Description	Price on VEVOR.com (as of December 15, 2025)
52-inch tow lawn sweeper	\$309.99 ¹¹⁶
48-inch tow plug aerator	\$235.99 ¹¹⁷
130-pound tow broadcast spreader	\$169.99 ¹¹⁸

Finally, Agri-Fab asserted CBP should correct the tariff classifications of the IORs’ entries of merchandise potentially covered by this investigation to reflect that it is covered by the *AD Order* by classifying tow-behind lawn sweepers under HTSUS 8479.89.9596 and tow-behind surface aerators and compost spreaders under 8432.80.0010.¹¹⁹

Written Arguments

No parties to the investigation submitted written arguments. However, on January 21, 2026, Agri-Fab filed a letter asking that CBP incorporate its December 18, 2025 comments on valuation in full and apply the information therein to all IORs covered by this EAPA investigation.¹²⁰ Agri-Fab asserted that none of the IORs involved in this case responded to CBP’s RFIs or otherwise cooperated with this investigation and therefore, CBP should apply adverse inferences pursuant to 19 C.F.R § 165.6 in making its determination as to evasion.¹²¹

¹¹² *Id.* at 13.

¹¹³ *Id.*

¹¹⁴ *Id.* at 13-17.

¹¹⁵ *Id.* at 18-19.

¹¹⁶ *Id.* at 14 and Exhibit CV.F.

¹¹⁷ *Id.* at 14 and Exhibit CV.G.

¹¹⁸ *Id.* at 14 and Exhibit CV.H.

¹¹⁹ *Id.* at 18.

¹²⁰ See Letter from Agri-Fab, “EAPA Consolidated Case No. 8150; Letter In Lieu Of Written Arguments,” (January 21, 2026) at 1.

¹²¹ *Id.* at 1-2.

II. Analysis as to Evasion

Under 19 U.S.C. § 1517(c)(1)(A), to reach a determination as to evasion, CBP must “make a determination, based on substantial evidence, with respect to whether such covered merchandise entered into the customs territory of the United States through evasion.” Evasion is defined as “entering covered merchandise into the customs territory of the United States by means of any document or electronically transmitted data or information, written or oral statement, or act that is material and false, or any omission that is material, and that results in any cash deposit or other security of any amount of applicable antidumping or countervailing duties being reduced or not being applied with respect to the merchandise.”¹²² As discussed in this determination, the record of this investigation contains evidence that the IORs entered merchandise subject to the *AD Order* into the United States through evasion, resulting in the avoidance of applicable AD cash deposits or other security by failing to declare the merchandise as subject to the *AD Order*, misclassifying the merchandise, and undervaluing the merchandise. Based on that evidence and the application of adverse inferences due to the IORs’ failure (and the failure of the suppliers) to cooperate in the investigation, CBP concludes there is substantial evidence of evasion.

Pursuant to 19 U.S.C. § 1517(c)(3) and 19 C.F.R. § 165.6(a), CBP may apply an adverse inference if the party to the investigation that filed an allegation, the importer, or the foreign producer or exporter of the covered merchandise fails to cooperate and comply to the best of its ability with a request for information made by CBP. In applying an adverse inference against an eligible party, CBP may use the facts otherwise available to make the determination as to evasion pursuant to 19 U.S.C. § 1517(c)(1)(A) and 19 C.F.R. § 165.27. Moreover, an adverse inference may be used with respect to U.S. importers, foreign producers, and exporters “without regard to whether another person involved in the same transaction or transactions under examination has provided the information sought....”¹²³

Because none of the IORs or suppliers ever responded to CBP’s RFIs, despite being given multiple opportunities to submit such responses, CBP’s ability to obtain information for its investigation was impeded significantly. The RFIs issued to the IORs and the suppliers included questions and requests for documentation relating to the IORs’ purchases and sales of covered merchandise, valuation of the imported merchandise, and Customs entry and compliance, among other information. Each RFI also listed specific entries made by that IOR or specific bill of lading numbers for shipments by that supplier and requested that the parties provide relevant supporting documentation for each entry or shipment, as applicable. Due to their failure to respond to the RFIs, CBP finds that the IORs have not cooperated and complied to the best of their abilities with CBP during this investigation. Accordingly, CBP is drawing inferences adverse to the IORs and the suppliers from the information submitted to CBP in the allegations, DIS documents, and Agri-Fab’s comments on valuation, as well as data obtained from CBP’s systems.

¹²² See 19 U.S.C. § 1517(a)(5)(A); see also 19 C.F.R. § 165.1.

¹²³ See 19 U.S.C. § 1517(c)(3)(B); see also 19 C.F.R. § 165.6(c).

Application of Adverse Inferences to Jiangshan Zhiyuan, LXQ Trading, Nanjing Fengjiao, Shenzhen Wushida, and SSG Group - Entries in DIS Documents on the Record

The entry summaries included in the DIS documents that CBP placed on the administrative record for Jiangshan Zhiyuan, LXQ Trading, Nanjing Fengjiao, Shenzhen Wushida, and SSG Group showed that during the POI, these IORs entered compost spreaders, surface aerators, and lawn sweepers that were declared as type “01” with a country of origin of China.¹²⁴ These entry summaries also demonstrated that compost spreaders had been classified under HTS number 8432.80.0080 and surface aerators and lawn sweepers were classified under HTS number 8479.89.9599, although the latter is not used to classify merchandise subject to the *AD Order* and therefore signals that these entries were misclassified.¹²⁵ The commercial invoices and packing lists in the DIS documents simply listed the imported products as “compost spreaders,” “surface aerators,” and “lawn sweepers,” without providing any additional information about the merchandise, such as the size, features, or model numbers.¹²⁶ By failing to submit responses to CBP’s RFIs, Jiangshan Zhiyuan, LXQ Trading, Nanjing Fengjiao, Shenzhen Wushida, and SSG Group hindered CBP’s ability to obtain information about the compost spreaders, surface aerators, and lawn sweepers, such as information that would relate to proper HTS classification and provide specific details about the products’ physical characteristics. Because the record lacks information about the specificity of the imported products, CBP is applying an adverse inference to the interests of Jiangshan Zhiyuan, LXQ Trading, Nanjing Fengjiao, Shenzhen Wushida, and SSG Group, finding that all the “compost spreaders,” “surface aerators,” and “lawn sweepers” reflected in the DIS documents constitute covered merchandise. Further, because Jiangshan Zhiyuan, LXQ Trading, Nanjing Fengjiao, Shenzhen Wushida, and SSG Group declared the entries of covered merchandise reflected on the DIS documents as type “01,” CBP finds there is substantial evidence of evasion by these IORs through their failure to declare the merchandise as subject to the *AD Order* and pay the requisite AD duties.

The entered values for the covered merchandise on the entry summaries in the DIS documents ranged from \$1.83 to \$3.53 per unit for compost spreaders, \$2.00 to \$22.00 per unit for lawn sweepers, and \$13.11 to \$46.00 per unit for surface aerators, and the invoices in the DIS documents reflected the same or nearly the same ranges of per-unit values for each lawn groomer product category.¹²⁷ As noted in the NOI, a comparison of the per-unit entered values to the per-unit values provided in the allegations indicated that the IORs’ entered values were grossly undervalued.¹²⁸ For example, the “break-even” import prices submitted by Agri-Fab for lawn sweepers ranged from \$39.07 to \$45.86 per unit, and Agri-Fab’s estimated production costs for

¹²⁴ See Jiangshan Zhiyuan DIS Documents Memorandum, LXQ Trading DIS Documents Memorandum, Nanjing Fengjiao DIS Documents Memorandum, Shenzhen Wushida DIS Documents Memorandum, and SSG Group DIS Documents Memorandum.

¹²⁵ *Id.*; see also NOI at 8 and 10.

¹²⁶ See Jiangshan Zhiyuan DIS Documents Memorandum, LXQ Trading DIS Documents Memorandum, Nanjing Fengjiao DIS Documents Memorandum, Shenzhen Wushida DIS Documents Memorandum, and SSG Group DIS Documents Memorandum.

¹²⁷ *Id.*; see also NOI at 9.

¹²⁸ See NOI at 10.

comparable lawn sweepers ranged from \$[amount] to \$[amount] per unit.¹²⁹ Moreover, information from VEVOR's website showed that the sales price for lawn sweepers in November 2024 ranged from \$189.99 (for a 42-inch tow lawn sweeper) to \$229.99 (for a 52-inch tow lawn sweeper) per unit; in December 2025, VEVOR's website offered a 52-inch tow lawn sweeper for \$309.99.¹³⁰ Because Jiangshan Zhiyuan, LXQ Trading, Nanjing Fengjiao, Shenzhen Wushida, and SSG Group failed to submit responses to the RFIs, these IORs impeded CBP's ability to obtain information about the proper valuation of the compost spreaders, surface aerators, and lawn sweepers in the DIS documents. Based on the IORs' non-responsiveness to the RFIs, coupled with the substantial difference between the per-unit entered values on the DIS documents and the information placed on the record by Agri-Fab, CBP finds, drawing an adverse inference from facts available on the record, that all the covered merchandise reflected on the DIS documents was undervalued and therefore constitutes substantial evidence of evasion by these IORs.

Since Jiangshan Zhiyuan, LXQ Trading, Nanjing Fengjiao, Shenzhen Wushida, and SSG Group did not respond to the RFIs or otherwise cooperate with CBP in this investigation, and since CBP has determined that the IORs' entries of covered merchandise were undervalued, CBP must select from among the facts available to determine the appropriate valuation of the merchandise. As noted above, there is no information in the DIS documents regarding product characteristics or even model numbers of the lawn groomers that would assist CBP in ascertaining the appropriate values for the covered merchandise. In addition, CBP finds that the weights of the covered merchandise in the DIS documents cannot be relied upon to estimate the size of the lawn groomers, and hence estimate a proper value, because there are substantial discrepancies between the gross weights declared on the entry summaries and the gross weights listed on the packing lists for the covered merchandise.¹³¹ As summarized in the chart in the subsection "Opportunity to Provide Business Confidential and Public Versions of DIS Documents" above and in the Appendix to this memorandum, except for one entry, the variances between the gross weights on the entry summaries and packing lists ranged from 8.72 percent to 123.68 percent, with the gross weights differing on the majority of the entries by over 20 percent.¹³²

In selecting from among the facts available in the DIS documents to determine the appropriate valuation of the covered merchandise, CBP is applying adverse inferences, and is selecting the highest value on the record of this investigation for any lawn groomer product. Accordingly, CBP is valuing all covered merchandise shown on the DIS documents at \$309.99 per unit, which is the price at which VEVOR brand 52-inch tow lawn sweepers were being offered for sale on VEVOR's website in December 2025.¹³³ Because CBP has determined that it is appropriate to apply adverse inferences in addressing the undervaluation of the covered merchandise on the

¹²⁹ *Id.* at 10-11; *see also* April 25 Allegation at 16-18 and Attachment F, and May 15 Allegation at 16-19 and Attachment F. Agri-Fab defined the "break-even" import price as the value at which the lawn groomers would need to be declared to CBP to break even on the sales price if AD duties were actually deposited.

¹³⁰ *See* April 25 Allegation at 17 and Attachments A-1 through A-4, May 15 Allegation at 17 and Attachments A-1 through A-4, and Valuation Comments at 14 and Exhibit CV.F.

¹³¹ *See* Jiangshan Zhiyuan DIS Documents Memorandum, LXQ Trading DIS Documents Memorandum, Nanjing Fengjiao DIS Documents Memorandum, Shenzhen Wushida DIS Documents Memorandum, and SSG Group DIS Documents Memorandum.

¹³² *Id.*

¹³³ *See* Valuation Comments at 14 and Exhibit CV.F.

DIS documents, it is not necessary to determine the appraised value using the methodologies set forth in 19 U.S.C. §1401a.

Moreover, given the unreliability of the information in the DIS documents regarding the covered merchandise, including the lack of details about the products and the weight discrepancies, CBP finds that the quantities stated on the DIS documents are not reliable. Therefore, as adverse inferences, CBP is relying on the highest quantity on the record of this investigation for any lawn groomer product to calculate an amount for AD duties due on each entry of covered merchandise. The highest quantity on the record for an entry of lawn groomers is 137, which is the quantity of compost spreaders shown on the DIS documents for entry number [#

]9025 by LXQ Trading.¹³⁴ See the Appendix to this memorandum for the quantities indicated on the DIS documents. After applying the highest per-unit value and highest quantity on the record to the entries on the DIS documents, CBP will calculate AD duties due using the China-wide AD rate, which is 386.28 percent.

Application of Adverse Inferences to All IORs – All Entries (Other Than Those in DIS Documents on the Record)

The RFIs issued to Amin World, Jiangshan Zhiyuan, LXQ Trading, Nanjing Fengjiao, New Wayn, Shaoxing Youcheng, Shenzhen Wushida, SSG Group, and Super Blooming Star listed specific entries made by each IOR during the POI and requested that they submit relevant supporting documentation for each entry listed therein. However, as noted previously, none of the IORs submitted responses to the RFIs. Data from CBP systems that CBP placed on the record for the vast majority of entries listed in the RFIs showed that the IORs classified merchandise under HTS numbers 8432.80.0080, 8479.89.9599, or 9603.50.0000 and/or provided a merchandise description containing one or more of the following terms: lawn, sweeper, aerator, spreader, and/or dethatcher.¹³⁵ Consequently, the CBP data establish that for nearly all of the entries listed in the RFIs, the IORs imported merchandise using the same HTS numbers as those used by Jiangshan Zhiyuan, LXQ Trading, Nanjing Fengjiao, Shenzhen Wushida, and SSG Group in the DIS documents (plus 9603.50.0000, which is an HTS number used to classify merchandise subject to the *AD Order*) and/or utilized a term that could describe a lawn groomer. Other data that CBP placed on the record showed that during the POI, the IORs entered merchandise classified under HTS numbers 8432.80.0080, 8479.89.9599, and/or 9603.50.0000 that was declared as type “01” with a country of origin of China.¹³⁶

¹³⁴ See LXQ Trading DIS Documents Memorandum at Attachment 1.

¹³⁵ See CBP Data for Jiangshan Zhiyuan Entries in RFI, CBP Data for LXQ Trading Entries in RFI, CBP Data for Nanjing Fengjiao Entries in RFI, CBP Data for Shaoxing Youcheng Entries in RFI, CBP Data for Shenzhen Wushida Entries in RFI, CBP Data for SSG Group Entries in RFI, and CBP Data for Super Blooming Star Entries in RFI. These memoranda contained data for all (or nearly all) of the entries listed in the RFIs, except for SSG Group and Super Blooming Star, whose respective memoranda listed only some of the of the entries in the RFIs. As noted above in footnote 82, CBP did not place this information on the record for IORs Amin World and New Wayn. However, for this determination, CBP is treating Amin World, New Wayn, and Super Blooming Star (for which CBP did place this information on the record) as dba companies of one another, given they all operate from the same address.

¹³⁶ See CBP Post-Receipt Data for Amin World, CBP Post-Receipt Data for Jiangshan Zhiyuan, CBP Post-Receipt Data for LXQ Trading, CBP Post-Receipt Data for Nanjing Fengjiao, CBP Post-Receipt Data for New Wayn, CBP Post-Receipt for Shaoxing Youcheng, CBP Post-Receipt Data for Shenzhen Wushida, CBP Post-Receipt Data for SSG Group, and CBP Post-Receipt Data for Super Blooming Star.

Because the IORs did not respond to the RFIs and thus failed to cooperate and comply with CBP to the best of their abilities during this investigation, CBP is applying adverse inferences to all IORs in selecting from among the facts otherwise available to make the determination as to evasion. Accordingly, as adverse inferences, CBP determines that each entry listed in the RFIs (or any other entry identified by CBP that is subject to this investigation) with one of the aforementioned HTS numbers (*i.e.*, 8432.80.0080, 8479.89.9599, and/or 9603.50.0000) and/or a term that could be used to describe a lawn groomer is covered merchandise. Because the IORs declared entries of covered merchandise as type “01,” CBP finds there is substantial evidence of evasion by the IORs through their failure to declare the merchandise as subject to the *AD Order* and pay the requisite AD duties. Moreover, due to the IORs’ failure to respond to the RFIs, the record lacks information about the specific lawn groomers entered by the IORs and the proper valuation of those products. Thus, as adverse inferences, CBP finds that all these entries have been undervalued, and is relying on the highest quantity and highest per-unit value on the record of this investigation for any lawn groomer product (137 and \$309.99, respectively, as explained above) and the China-wide AD rate of 386.28 percent to determine the amount of AD duties due.

Misclassification

CBP data show that the IORs used HTS numbers 8432.80.0080, 8479.89.9599, and 9603.50.0000 to classify entries of covered merchandise.¹³⁷ For the entries reflected in the DIS documents, the IORs classified “surface aerators” and “lawn sweepers” under HTS number 8479.89.9599 and “compost spreaders” under HTS number 8432.80.0080.¹³⁸ As explained above, because the IORs failed to respond to the RFIs, CBP has determined, as adverse inferences, that each entry listed in the RFIs (or any other entry identified by CBP that is subject to this investigation) with HTS number 8432.80.0080, 8479.89.9599, and/or 9603.50.0000, and/or a term that could be used to designate a lawn groomer, constitutes covered merchandise. However, because the record lacks information about the specific products entered by the IORs, CBP cannot determine with utmost certainty whether the HTS number(s) declared for each entry is/are correct, as several HTS numbers can be used to classify covered merchandise.¹³⁹ Nevertheless, since HTS number 8479.89.9599 is not used to classify covered merchandise, CBP finds that all entries of covered merchandise that were classified under HTS number 8479.89.9599 were misclassified. As a result, CBP determines there is substantial evidence of evasion of the *AD Order* by the IORs through misclassification.

¹³⁷ See CBP Post-Receipt Data for Amin World, CBP Post-Receipt Data for Jiangshan Zhiyuan, CBP Post-Receipt Data for LXQ Trading, CBP Post-Receipt Data for Nanjing Fengjiao, CBP Post-Receipt Data for New Wayn, CBP Post-Receipt for Shaoxing Youcheng, CBP Post-Receipt Data for Shenzhen Wushida, CBP Post-Receipt Data for SSG Group, and CBP Post-Receipt Data for Super Blooming Star; *see also* CBP Data for Jiangshan Zhiyuan Entries in RFI, CBP Data for LXQ Trading Entries in RFI, CBP Data for Nanjing Fengjiao Entries in RFI, CBP Data for Shaoxing Youcheng Entries in RFI, CBP Data for Shenzhen Wushida Entries in RFI, CBP Data for SSG Group Entries in RFI, and CBP Data for Super Blooming Star Entries in RFI.

¹³⁸ See Jiangshan Zhiyuan DIS Documents Memorandum, LXQ Trading DIS Documents Memorandum, Nanjing Fengjiao DIS Documents Memorandum, Shenzhen Wushida DIS Documents Memorandum, and SSG Group DIS Documents Memorandum. HTS number 8479.89.9599 is not used to classify merchandise subject to the *AD Order*. This HTS number refers to “Machines and mechanical appliances having individual functions, not specified or included elsewhere in this chapter; parts thereof: Other: Other: Other.” See <https://hts.usitc.gov/>, Chapter 84.

¹³⁹ The HTS numbers currently used to classify merchandise subject to the *AD Order* are 8432.80.0010, 9603.50.0000, 8432.41.0000, 8432.42.0000, 8432.90.0060, 8432.90.0081, 8432.80.0080, and 8479.89.9596.

III. Determination as to Evasion

As detailed above, based on record evidence and the application of adverse inferences due to the IORs' (and the suppliers') failure to cooperate in this investigation, CBP determines there is substantial evidence that the IORs evaded the *AD Order* by entering Chinese-origin TBLGs into the United States and failing to declare the merchandise as subject to the *AD Order*, misclassifying the merchandise, and undervaluing the merchandise, thereby avoiding the applicable AD cash deposits or other security applicable to such merchandise.

IV. Actions Taken Pursuant to the Affirmative Determination as to Evasion

In consideration of CBP's determination that substantial evidence demonstrates that the IORs entered covered merchandise into the customs territory of the United States through evasion, and pursuant to 19 U.S.C. § 1517(d) and 19 C.F.R. § 165.28, CBP will suspend or continue to suspend the entries covered by this investigation, until instructed to liquidate. For those entries previously extended in accordance with the interim measures, CBP will rate adjust and change those entries to type 03 and continue suspension until instructed to liquidate these entries. CBP may also evaluate the IORs' continuous bonds in accordance with CBP's policies. None of the above actions precludes CBP or other agencies from pursuing additional enforcement actions or penalties.

Sincerely,



Lee M. Baxley
Acting Director, Enforcement Operations Division
Trade Remedy Law Enforcement Directorate
CBP Office of Trade

Appendix

IOR Name	Entry Number	Attachment No. in DIS Documents Memorandum	Product Description on Invoice and Packing List	Line Number (Entry Summary, Invoice, and Packing List)	Quantity (Entry Summary, Invoice, and Packing List)	Entry Summary Gross Weight (KG)	Entry Summary Unit Weight (KG)	Packing List Gross Weight (KG)	Packing List Unit Weight (KG)	Difference in Weight (KG)	Difference between Gross Weight on Packing List and Entry Summary (%)
Jiangshan Zhiyuan	[#] 0420	1	Lawn Sweeper	29	46	438	9.52	795.80	17.30	357.80	44.96%
Jiangshan Zhiyuan	[#] 3192	2	Surface Aerator	2	9	103	11.44	273.60	30.40	170.60	62.35%
Jiangshan Zhiyuan	[#] 3382	3	Surface Aerator	31	1	68	68.00	30.40	30.40	-37.60	-123.68%
LXQ Trading	[#] 9025	1	Compost Spreader	13	137	1302	9.50	2177.90	15.90	875.90	40.22%
LXQ Trading	[#] 4741	2	Lawn Sweeper	13	109	3717	34.10	3716.90	34.10	-0.10	0.00%
LXQ Trading	[#] 4758	3	Lawn Sweeper	14	53	2679	50.55	1807.30	34.10	-871.70	-48.23%
LXQ Trading	[#] 4766	4	Lawn Sweeper	36	8	249	31.13	272.80	34.10	23.80	8.72%
Nanjing Fengjiao	[#] 7783	1	Compost Spreader	9	81	840	10.37	1125.20	13.89	285.20	25.35%
Nanjing Fengjiao	[#] 7949	2	Compost Spreader	2	24	152	6.33	85.20	3.55	-66.80	-78.40%
Nanjing Fengjiao	[#] 7949	2	Lawn Sweeper	19	11	288	26.18	363.10	33.01	75.10	20.68%
Nanjing Fengjiao	[#] 0596	3	Lawn Sweeper	27	6	328	54.67	204.60	34.10	-123.40	-60.31%
Nanjing Fengjiao	[#] 9966	4	Lawn Sweeper	17	37	174	4.70	359.75	9.72	185.75	51.63%
Nanjing Fengjiao	[#] 1194	5	Lawn Sweeper	3	16	184	11.50	567.36	35.46	383.36	67.57%
Shenzhen Wushida	[#] 2055	1	Lawn Sweeper	23	32	248	7.75	313.60	9.80	65.60	20.92%
Shenzhen Wushida	[#] 2310	2	Lawn Sweeper	24	32	109	3.41	244.00	7.63	135.00	55.33%
SSG Group	[#] 2327	1	Compost Spreader	19	18	179	9.94	210.60	11.70	31.60	15.00%

Source: Jiangshan Zhiyuan DIS Documents Memorandum, LXQ Trading DIS Documents Memorandum, Nanjing Fengjiao DIS Documents Memorandum, Shenzhen Wushida DIS Documents Memorandum, and SSG Group DIS Documents Memorandum.